



GNLU OBITER THE LAW PODCAST

ETHICS OF A LAWYER : EPISODE 5 TRANSCRIPT		
(AG)	Guest	Shri Kamal Trivedi <i>Advocate General of Gujarat, Senior Advocate¹</i>
(SS)	Host	Swayam M. Shah <i>Student, Gujarat National Law University</i>

Intro: When the State of Gujarat has to go to the court, she speaks through the voice of the Advocate General. According to the Constitution, the Advocate General is the highest law officer of the State, a constitutional bridge between the Executive and the Judiciary. For nearly two decades now, this position has been held by one man, a first-generation lawyer, Shri Kamal B. Trivedi.

From the towering Statue of Unity to GIFT City, Sabarmati Riverfront to

Bullet Train, Gujarat's most iconic projects have had their legal fates argued and successfully defended by him. He's known not only for his command over constitutional law, masterful advocacy that teaches as much as it persuades, but above all, his unshakable integrity. It's a privilege to invite a doyen of the Bar, Shri Kamal Trivedi.

[SS]: How are you, sir?

[AG]: I'm very well, Swayam. I think, you know, thanks for having me and giving a very generous

introduction about me, thank you very much.

[SS]: You are a first-generation lawyer and you have also been the Advocate General of Gujarat for nearly two decades. So firstly, how was it for a first-generation lawyer? And secondly, how has the role evolved over this span of years?

[AG]: Yes, you're right I'm a first-generation lawyer. But law was never in my head. I wanted to become a successful architect or a successful interior decorator. But I somehow fluked into this law I may say by default rather than by design. It's a history I may not go deeper into it. But in life, you know, somewhere, some motivation factors do play a role so was the proposition with me.

At the same time, there was nothing for me to fall back on. I was clueless. So somebody said, "Why don't you join law?" That's how I joined law. For the first year, you know, I was absolutely not interested. Then I realized that I need to buckle up and that's how my journey started. So that's how, I think, I'm in the profession.

[SS]: So perhaps you may not have been architect of homes but probably in the founding of the immense integrity and the quality of persuasive advocacy, you are an architect in the Gujarat High Court.

[AG]: I feel flattered. Very well said.

[SS]: Personally, I have witnessed this whenever you enter the courtroom, all the eyeballs are fixated at you. But there's a hidden cost to that a constant level of scrutiny against you. So how do you deal with the pressure of always being correct?

[AG]: You're absolutely right. I think perhaps that phenomenon is common with all public appointments. So there's nothing new or exceptional about the post of Advocate General. But you're right what I speak, what are my public utterances, how do I carry on with the matters, how do I argue, how do I dress up, how do I talk with the people, how do I address the gathering everything is being, I may call it, scrutinized, criticized, sometimes commended.

But it's a part of the whole discipline, and one has to cultivate that. One has to get adjusted to it. Because, you know, having learned this, I can't move like a bull in a china shop the way other senior lawyers do, or some of our functionaries of the Advocates' Association do, we cannot follow. But to have that kind of discipline in life, and that too in professional life, perhaps one should try to inculcate it, if one does not already have it.

So I would like to have that you know, I'm scrutinized all the while and that's how I strike the equilibrium.

[SS]: So I think, in a manner, that is also perhaps helping you to bring out the best version of yourself because there's always people checking on you.

[AG]: That's right.

[SS]: You have seen a generation of judges, lawyers, governments, so what's one thing that should change and one thing that must not?

[AG]: I think, you know, what should not change and what has not been changed is unwavering faith in

the majesty of the justice delivery system. Today, you go to a common man on the street, the last recourse for him is a court. He feels that if I'm done injustice, there is nobody to remedy it, the court is there.

So that faith has remained unshaken and that is perhaps the greatest value which our democratic country possesses.

What should be changed and what must be changed a couple of things, but mainly two:

One, the prison justice delivery system is required to be toned up, more particularly to deal with the menace of delay. I think our proceedings take inordinately long time. Common people, the people who are languishing in jail as undertrial prisoners, they have to wait. Supposing for a criminal offence, punishment is 10 years, they already spent 10 years, and thereafter trial will begin. So what is the fate of that?

So I think something should be done to take care of this delay.

And secondly, this system should be improved so as to make it, if I may say

so, more approachable, more affordable, more accessible, keeping in mind the common man's plight.

So if these two things are changed, perhaps we may have a heavenly feeling so far as our judicial system is concerned.

[SS]: So it is pertinent to maintain the faith that a common man has in the judiciary. And it is also said that justice delayed is justice denied. Now, on the topic of common man, I have a similar question: what do you do when you're assigned a case that you're morally opposed to?

[AG]: The answer to this question, Swayam, is very subjective. But for me, I will try to draw a line of distinction between what is something which is morally wrong, and something which is statutorily wrong.

So far as something which is statutorily wrong you can have your different shades of interpretation, you can argue the matter nothing restrains you from doing that.

So far as I am concerned, if something is morally wrong, perhaps I would not like to argue that case. And if I am

rather pressed to argue, then I would say these are my instructions, and this is my personal perception. I leave it to the court.

But this proposition is difficult to propagate for those who have chosen the criminal branch of practice. There, you are obliged to defend your client. So I think one has to strike an equilibrium. You try to go for that line which gives you a mental peace which feels that, at the end of the day, at least I have done my work keeping in mind God.

So, if something is morally wrong perhaps it depends upon the individual. So far as I am concerned, I will not do that.

[SS]: Perhaps to distill your answer: firstly, apart from being an advocate, you're also an officer of the court so maintain the ethical standard. And secondly, because of due process of law, even if assigned a case, you should probably adhere to the duty of an advocate but know where the moral line stands and where the statutory line stands.

Now what does success mean to you now versus when you started your career as a first-generation lawyer?

[AG]: Somebody has rightly said that early success is about proving yourself. So naturally, as a young lawyer, at that time, the quest is to win the case at all cost. I think that perception should get diluted over a passage of time.

Today, for me, I would treat, you know, my success at par with satisfaction, the satisfaction I may derive from various tasks I undertake. I would like to see that, you know, I do right things, which are permissible within the permissible contours of law, rather than winning my case at all cost.

I would like to see that I mentor the younger generation to improve their skill and ethics. I may get, you know, satisfaction therefrom also. I would like to do pro bono work, which I have been doing. All these things, that is perhaps the height of satisfaction.

I would also like to build, if I may say so, legacy for trust, faith, transparency, and undoubtedly, reputation. Because one thing in this profession is to see that

you maintain your reputation. Once reputation is gone, you may materially become a giant, but people will not look at you with that respect.

I would also like to do that, you know, the judiciary is also helped out because I am supposed to be maintaining equilibrium between judiciary, the executive, and the legislature. And I would like to see that I keep on serving the Constitution and public interest.

So these are the ways in which I draw my satisfaction, not merely winning the case, which was the goal when I started. And I appeal to all youngsters: you should not get that perception at the start. You need to have a killing instinct, and unless you have a killing instinct, perhaps you will not be able to come up.

[SS]: **So when you're in a cave of injustice, only when you have a blemish-free record, only then can you serve true justice.**

That's right. Now, on the topic of talking about success, I would also like to talk about failure, the other side of the coin. Sometimes you give everything to a case, a project,

homework, anything. You have given 110%, and yet you fail.

So when you are dealing with high-stake cases and the judgment does not favor you, how do you personally deal with the disappointment or the loss?

[AG]: I think we all are human beings, so element of disappointment may creep in. I mean, in your case, in my case when you are young that creeping is more lethal. You may get, you know, disappointed in totality. You lose your mood. It happens.

But, you know, in Gita, it is said:

*"Karmanye vadhikaraste, Ma phaleshou
kada chana..."*

*"That you have the right to work, not
to the fruits thereof."*

So you keep on moving. I think ultimately you can't depend upon certainty of fruits. Fruits may come.

So all I would like to appeal to the younger generation is that you need to have patience, you need to have passion, and you need to have perseverance. If you can possess these three Ps and master them, perhaps

disappointment may come and may go. At one point of time, perhaps you'll be fully satisfied.

And we have in our country the hierarchy of system. If you lost in the first round, go to the second appellate forum, then the third, and a final appellate forum. So if you are right, you will succeed at one point of time. So merely because you are not getting success immediately, don't get exasperated. Ultimately, you have to wait.

I think, you know, if I rightly recall, Martin Luther King Jr., who was perhaps one of the most prominent civil rights activists in the US he had become the minister from '55 to '68, if I mistake not and he was a lawyer also. He had said that:

*"If you can't fly, you run. If you can't run,
you walk. If you can't walk, you crawl.
But keep on moving."*

Without being desirous of any good fruits, you should try to hit the bullseye. And if you don't get, you know, that particular bullseye, don't get disappointed, one day you'll get it. So I believe in that theory.

[SS]: A lot of young lawyers are briefless: they have the ability, but they lack the visibility. So what are the strategies that you would recommend to them?

[AG]: Mr. Palkhivala joined the chambers of J.B. Dadachandji, and for 7 years, he did not argue a single brief. He was suffering from two major complications:

Number one: he had a strained voice. He was not in a position to speak fluently. The Palkhivala we saw come out as a towering personality, a great speaker, was not Nani Palkhivala at his prime. He was practising in front of a mirror, asking: where do I commit an error, how do I improve.

Number two: he perhaps had no confidence in himself. So for seven years, he says in one of the, you know, books that "I did not argue a single brief. I was just, you know, helping my seniors." So imagine a person who has not got a single brief to argue for seven years, and after seven years he comes out as a great, towering personality, a great legal luminary.

So my advice to the younger generation who are entering the profession: don't be in a quest of getting briefs at an early age. I think perhaps what you should do is you should try to find out by joining the office of a good senior, by getting good mentoring. Try to see that you attend all the conferences with the senior advocate fully prepared so that the client who is attending the conference may realize that here is a junior, here is Mr. Swayam, who knows perhaps as much as his senior.

You should try to see that you inculcate the qualities of your senior. And I don't mind, you know, you have not one role model, you have as many as half a dozen role models. One role model for his style, one for his assertion and argument quality in court, one for the way he prepares a brief.

I don't say inculcate, I say imitate. That imitation will be of great advantage to you. Perhaps we don't do that. And I don't call the best lawyers those who know everything. According to me, the best lawyers are those who can read the law, who can adopt the law, and who can analyze and critically think about it, because it is impossible for one lawyer

to know everything. So perhaps the briefs will come automatically.

I may also recommend that youngsters should get registered themselves with the District Service Legal Authority, with Gujarat State Legal Services Authority, where at the same time of providing legal aid, you are in a position to see that your voice becomes, you know, known in the court. The judges will start, you know, realizing that here is a person who is having, you know, great quality. So briefs will come, slowly but surely, I can assure.

[SS]: Firstly, on the topic of Nani Palkhivala, you stated, that he did not argue a brief for seven years, but after a few years, he appeared before the largest bench of the Supreme Court, that is of 13 judges. And secondly, on the topic of visibility, I greatly resonate with the idea that even if you don't have a brief, firstly, you should shadow perhaps a senior, multiple seniors, gain exposure, lessons, and how they conduct their business.

And secondly, you can also register with local legal aid clinics. You probably may not earn a lot, but at

least you'll get a brief to argue and showcase your ability.

Now, on the topic of accessibility to justice, I realise that we students may not be able to make a monumental impact. But at least, what would you expect young junior advocates or law students to contribute to make justice more accessible?

[AG]: For law students, you know, I would say that conduct symposiums, conduct seminars, conduct podcasts, what you have been doing, to acclimatise the ordinary people about, you know, their rights, about their duties, about the provisions of various laws. That is one way of doing it.

I think I have come across many of my friends, who have been regularly visiting, you know, panchayats, legal clinics, schools by organising camps, by inviting some good people to deliver lectures on various aspects that are currently unfolding across the nation. So, as a law student, you can do all these things whereby not only you will be able to develop your qualities, but you'll be able to at least know what is happening in the world, and that's how

accessibility can be increased. The people will start, you know, knowing about their rights, about their, you know, forums available for ventilating the grievances.

And so far as young lawyers are concerned, while practicing, I think they can also attend the legal trainings. They can also, once again, get themselves registered with the District Legal Services Authority. They can also pursue a career of journalism side by side. I know some gentlemen who are lawyers; at the same time, they are learning lessons of journalism. They're writing columns, and that's how people start coming to know here is Swayam who is writing a column on tax, let's go to him. So, that's how you'll start getting recognition. So ultimately, I think legal awareness is the main thing.

[SS]: That's right. So, I think, try to create that awareness in one form or another. I think, luckily, at GNLU, we have a Startup Conclave every year where students present their startup ideas, and we get funding for it.

[AG]: Great, great.

[SS]: And most of the startups are, in some or the other way, related to law. So we also have a similar startup where students go to local panchayats to collect problems and solve them.

[AG]: Kind of environment, kind of facilities you people have when we were studying, it was, you know, a morning college, three periods a day, and after that, you know, people were finding absolutely no time to do anything. They were totally roaming, you know, with no work, no ideas. We didn't have, you know, this kind of moot court competitions. We were not having this technology and tools what you have been using. Nevertheless, you know, we tried to come up. So, you have got lots more opportunities as compared to us.

[SS]: It's true we are lucky like that. But at the same time, law is an ever-evolving field, and you require vast knowledge. Now, as we, as young law students, when we are interning, when we are reading a case law to understand the current position of law, you need to understand the last 20 years of law. Additionally, tomorrow, the Supreme Court may

overturn that. So, how should we keep up with the ever-evolving nature of law and have a deep-rooted understanding of what the law is?

[AG]: See, the other day, I came across, you know, one of the interviews of Justice Gautam Patel, the former judge of Bombay High Court. I think he's known for his, you know, very frank and candid judgments. And one thing which I liked the most about, you know, his referring to the young lawyers was that the fundamental thing which a young lawyer should do is he should be a lunatic reader. And I connect this with what, you know, one of the great novelists called Walter Scott he was a novelist from Scotland and was a lawyer he said that a lawyer without the knowledge of history, geography, say, poetry, the literature, the ancient literature as well as the modern literature, he is just like a mechanic, nothing more. But if he acquires some knowledge of these subjects history, geography, literature, poetry he can qualify himself to be called as a successful architect what you started, your comment, you know, at the outset.

So perhaps, I say, don't try to do everything. You concentrate on your fundamentals first namely, Constitution, Civil Procedure Code, Contract, Civil Law, Criminal Law, and Legal Interpretation. Having acquired this, then there is a journey. It is a long journey, and for that purpose, you know, one should be prepared.

[SS]: Now, on the topic of journey, we have courts, but there's an additional alternative dispute mechanism enforced in the country that is of arbitration, mediation. Now, in a recent MCIA seminar, you talked about creating an arbitral village an arbitral township and you utilized the example of GIFT City. So, can you please give me a glimpse of this village?

[AG]: See, I have mixed views on arbitration. When we started with this, say, enactment of the 1996 Act, perhaps the hopes were great. Recently, I came across, you know, one of the studies made by a very leading, reputed law firm and they interviewed the stakeholders, the arbitrators, and they came to the conclusion that more than 60% people are not happy with the arbitration. Now, they are either

dissatisfied or they are ambivalent. So, that concept of arbitration with which, you know, it started has lost its efficacy.

For that purpose, we need to do something new. Of course, we have now the recent Bill of 2024, which has come out with a number of amendments emphasizing institutional arbitration. So, what I was referring to in that one of the seminars was that why can't we have a village, where you go on a blazer trip? Along with the blazer trip, you also conduct arbitration, and you have got all the facilities you have got a facility of lodging, boarding, all your machine tools and technology tools, and the fleet of arbitrators. That fleet consists of, you know, doctors, engineers, cost accountants, chartered engineers, apart from lawyers and the Hon'ble judges. And you have one cohesive atmosphere at the same time where you can work like, you know, our cricket players, they remain in a bubble. They come in Ahmedabad, for example they've got one day. What will they do? They will practice in the morning. In the later part of the day, they enjoy the life because that atmosphere is being sought to be given to them.

So, if that atmosphere is available to people who are practicing in the field and the parties who are the litigants in the arbitration proceedings, they may get motivated yes, we have this kind of a village. And specify the limit of the village statutorily in the Act this is a village with a jurisdiction, like akin to the arbitration proceedings along with Section 17 proceedings available, along with Section 34 proceedings available, along with, you know, Section 37 appeal proceedings available in one village. So, you need not, you know, run from pillar to post. And there is a final appeal to the Supreme Court, and only those people will come who are exclusively interested in arbitration. It's a very, very innovative at the same time far-fetched idea. But one can think of implementing that, if you want to see that our country becomes an international hub for arbitration.

[SS]: It's indeed a radical idea. But I believe that, again, justice delayed is justice denied. And if alternative dispute mechanisms fail

And GIFT City, the government is trying its level best to see that kind of permanent structure starts. So, let's hope for the best.

[SS]: Now, on relation with the government the Advocate General does not just have the role of arguing before a court, but there are other roles and responsibilities attached as well. So, if you could briefly elucidate on the same?

[AG]: The role of the Advocate General, though circumscribed and crystallized by statute, is as follows: the Advocate General is appointed under Article 165 of the Constitution by the Honourable Governor. There are certain other governing provisions: the Constitution of India, the Advocates Act, 1961, the Bar Council of India Act, 1961, the Civil Procedure Code, 1908, and the Contempt of Courts Act, 1971. These are the basic legislations where the role of the Advocate General has been prescribed.

The role has remained the same, by and large, but what has changed is the pressure and the qualitative work arising from these provisions. Today, that role is multifaceted. It arises out of various matters, including amendments to existing laws to keep pace with the times. All amendments are to be approved by the Advocate General.

New legislation passed by the legislature day in and day out is also to be approved by the Advocate General. The Honourable Governor seeks advice, the Honourable Chief Minister seeks advice. The concerned ministers and heads of departments, all 30 of them, also look to the Advocate General, sometimes to pass on the buck that the Advocate General has approved the matter.

On a regular basis, we need to grant sanction under the Contempt of Courts Act. If somebody wants to proceed against an individual who is guilty of professional misconduct, the court will not begin adjudicating the matter unless the Advocate General gives consent.

The Advocate General is also to file a suit if there is a breach of any covenant of a public trust, under the Civil Procedure Code. When public trust covenants are breached, the Advocate General files suit.

At times, we need to address the Assembly. When some important issue arises, everyone would like a written opinion. So, apart from arguing the matter in court, these are the kinds of

roles an Advocate General is supposed to take care of.

[SS]: So ordinarily, when I'm concluding the podcast, we generally ask the guest that what is one advice that you would give to a young junior or a young law student. But to you, I would like to tweak the question. Keeping the young students in mind, what is your advice to the future Advocate General of Gujarat?

[AG]: I perhaps may not like to advise in that way. I had two predecessors. One, Mr. J.M. Thakore, a towering personality, he was Advocate General right from 1960 till 2000. His record is unbroken. Thereafter we had Mr. S.N. Shelat, he was Advocate General from 2002 to 2005. I took the baton from them.

Once, I tried to ask Mr. Thakore, who was instrumental in making me independent. I was with one of the firms earlier. He said, "Kamal, you start practising independently." And I had a similar question: "Sir, who will give me a brief?"

The advice I am conveying is nothing but what I had got from him. He

illustrated this with two or three examples. One was a real story from Great Britain. An old lady wanted her son to become an advocate. Her next-door neighbour was Lord Macmillan of the House of Lords. So she visited his house and said, "Sir, I would like my son to become a lawyer."

So Lord Macmillan posed a question: "Miss, would your son like to work like a horse and live like a hermit?" She couldn't understand what he meant. Then he went on describing his own story. He said that when he joined the Bar, he thought it would be a bed of roses. He soon discovered it was either all work and no roses, or all roses and no work.

He said: Kamal, always look up to the Constitution, not as a legal document but as a moral plan. Number two, and I have taken this from Mr. Thakore: try to follow the Bhagavad Gita not as a religious book but as a moral philosophy. It will teach you your rights and your duties. It speaks about the inner dilemma between duty and righteousness.

And the third thing which perhaps we unconsciously believe — he says: look

up to God Almighty, because Constitution is not the final authority. Gita is not the final authority. There is some higher order, which is divine, which is beyond your law and reason.

So I will appeal to the younger generation: keep on having those three Ps: patience, passion, and perseverance. Things will come automatically.

[SS]: With that, we conclude today's podcast. On behalf of myself, on behalf of Saumil Agarwal, the backbone of GNLU Obiter, my entire GNLU Obiter team, we're extremely grateful to you for sparing time for us

from your busy schedule. And we are extremely, extremely grateful to have you.

[AG]: Thank you very much, and I wish you all the best. And I convey my best wishes to all the student community of GNLU. I think it is known as one of the finest law schools, and they should come out as good professionals. Of course, many of you would like to join chamber practice, but I feel the thrill you have in court practice, you may not find that in chamber practice. So please do come to the profession.

[SS]: Thank you very much.